

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2023CUOR016440: MICHAEL KELLY, et al. vs TOM A LUNGIN, et al.

09/23/2026 in Department 43

Motions to be Relieved as Counsel for Plaintiffs

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Motion of attorney Kirk C. Pearson to be relieved as counsel of record for Michael P. Kelly and Susan Kelly.

Tentative Ruling: The motion of attorney Kirk C. Pearson to be relieved as counsel of record for Michael P. Kelly and Susan Kelly is GRANTED. The Court will sign the proposed orders.

Counsel shall comply with California Rules of Court, rule 3.1362(e), including service of the signed orders on the clients and all parties who have appeared in this action and filing the appropriate proof of service. The orders shall become effective upon filing of proof of service of the signed orders on the clients.

Moving party is ordered to serve notice of the Court's ruling.

DISCUSSION

Code of Civil Procedure section 284, subdivision (2), permits an attorney to withdraw from an action upon order of the court after notice to the client. California Rules of Court, rule 3.1362,

establishes the procedure for such a motion, including the required Judicial Council forms, service, and proposed order. The determination whether to grant or deny a motion to withdraw rests within the sound discretion of the trial court. (*Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1133.)

The Court must exercise that discretion reasonably. Although withdrawal may be denied where it would work an injustice or cause undue delay, an attorney is not required to continue a representation where withdrawal can be accomplished without undue prejudice to the client's interests. (*Mandell v. Superior Court* (1977) 67 Cal.App.3d 1, 4; *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915-916.)

California Rule of Professional Conduct 1.16(b)(4) recognizes that an attorney may withdraw where the client, by other conduct, renders it unreasonably difficult for the lawyer to carry out the representation effectively. Rule 1.16 further requires an attorney, when withdrawal is permitted, to take reasonable steps to avoid reasonably foreseeable prejudice to the client's rights.

Here, the evidence establishes more than an isolated disagreement between counsel and client concerning litigation strategy. The record reflects repeated complaints by the client concerning counsel's handling of the matter, substantial dissatisfaction with counsel's representation, statements by the client questioning counsel's legal strategies, and disputes regarding payment of fees. Counsel represents that the attorney-client relationship has suffered a complete and permanent breakdown.

The Court does not determine, and expresses no opinion concerning, whether counsel failed to satisfy any professional obligation. Those issues are not before the Court on this motion. The significance of the client's statements for present purposes is that they demonstrate the extent to which the relationship between attorney and client has deteriorated and is irreparable.

The Court has also considered the clients' opposition. The clients contend that withdrawal should be denied because they cannot afford to retain another attorney, have been unable to locate replacement counsel, and will suffer prejudice if counsel is permitted to withdraw.

The Court does not minimize those concerns. The client's financial circumstances and difficulty obtaining replacement counsel are relevant considerations. Nevertheless, the client's inability to obtain substitute counsel does not require counsel to continue a representation that has become untenable. The pertinent inquiry is whether withdrawal, under the circumstances presented, will result in undue or reasonably avoidable prejudice to the client's ability to litigate the action.

The cumulative circumstances establish sufficient grounds to conclude that the attorney-client relationship has broken down to such an extent that continued representation would be unreasonably difficult and that effective representation is unlikely to continue. The Court therefore finds good cause to permit counsel to withdraw.

Here, the action has been pending for almost three years, but the trial was vacated and there is no trial date presently set. The record does not establish that counsel's withdrawal will occur immediately before trial or another critical proceeding, or that withdrawal at this stage will deprive the clients of a meaningful opportunity to protect their interests. The absence of a presently

scheduled trial date weighs substantially against a finding of the type of immediate and irreparable prejudice that provides a basis to deny withdrawal. See *Ramirez v. Sturdevant*, supra, 21 Cal.App.4th at pp. 915-916 (recognizing that withdrawal is permissible where it can be accomplished without undue prejudice to the client's interests).

The Court therefore concludes that the potential hardship identified by the client does not outweigh the breakdown in the attorney-client relationship, particularly where there is no presently scheduled trial date and the client has sufficient time and opportunity to obtain new counsel or elect to proceed in propria persona.

The Court further finds that permitting withdrawal at this juncture will not unduly disrupt the administration of the case. Appropriate protections for the client can be provided through the effective date of the withdrawal and counsel's continuing obligations concerning transition of the representation.

Based on the foregoing, the motion is granted.